

may request information, it cannot compel it . . . ." W. Taft, *The Presidency* 110 (1916). President Washington established the tradition by declining to produce papers requested by the House of Representatives relating to matters of foreign policy:

"To admit, then, a right in the House of Representatives to demand and to have as a matter of course all the papers respecting a negotiation with a foreign power would be to establish a dangerous precedent." 1 *Messages and Papers of the Presidents* 195 (J. Richardson comp., 1899).

In noting the first President's practice, this Court stated in *United States v. Curtiss-Wright Corp.*, 299 U. S. 304, 320 (1936), that Washington's historic precedent was "a refusal the wisdom of which was recognized by the House itself and has never since been doubted."<sup>5</sup>

Part of our constitutional fabric, then, from the beginning has been the President's freedom from control or coercion by Congress, including attempts to procure documents that, though clearly pertaining to matters of important governmental interests, belong and pertain to the President. This freedom from Congress' coercive influence, in the words of *Humphrey's Executor*, "is implied in the very fact of the separation of the powers . . . ." 295 U. S., at 629-630. Moreover, it is not constitutionally significant that Congress has not directed that the papers be turned over to it for examination or retention, rather than to GSA. Separation of powers is fully implicated simply by Congress' mandating what disposition is to be made of the papers of another branch.

This independence of the three branches of Government, including control over the papers of each, lies at the heart of

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<sup>5</sup> This Presidential prerogative has not been limited to foreign affairs, where, of course, secrecy and confidentiality may be of the utmost importance. See A. Bickel, *The Morality of Consent* 79 (1975); W. Taft, *The Presidency* 110 (1916).